



CPI Search Report

TaxID	Name	Current Rank	Current Command	Shield	Rank at the time of CPI Entry	CMD at the time of CPI Entry	Event #	Event Type	Event Date	Event Status	Narrative
950897	MODESTO, FABIAN	SGT	094	2591	SGT	094	2024-17329	INTERNAL INVESTIGATION	10/15/2024	UPDATE	IAB LOG # : 24-30363 ICMT CASE # : OG24-14074 REFERRED TO : 094 - 94TH PRECINCT ALLEGATION : 1. FAIL TO SAFEGUARD DEPT EQUIPMENT - DEPT CELLULAR PHONE(SUBSTANTIATED) ALLEGATION : 2. MISSING DEPARTMENT EQUIPMENT - DEPT CELLULAR PHONE(SUBSTANTIATED) CASE STATUS : CLOSED CLOSED DATE : 2024-11-19 ACTION TAKEN : VERBAL OF INSTRUCTIONS
950897	MODESTO, FABIAN	SGT	094	2591	SGT	094	2024-6711	INTERNAL INVESTIGATION	05/01/2024	UPDATE	IAB LOG # : 24-12048 ICMT CASE # : OG24-5769 REFERRED TO : 094 - 94TH PRECINCT ALLEGATION : 1. MEMOBOOK INCOMPLETE/IMPROPER - (EXONERATED) ALLEGATION : 2. FAIL TO PREPARE REPORT - STOP QUESTION FRISK REPORT(EXONERATED) CASE STATUS : CLOSED CLOSED DATE : 2024-06-19 ACTION TAKEN : NO ACTION TAKEN

950897	MODESTO, FABIAN	SGT	094	2591	DTS	067	2023-19813	INTERNAL INVESTIGATION	10/24/2023	UPDATE	IAB LOG # : 23-31333 ICMT CASE # : OG23-15439 REFERRED TO : 067 - 67TH PRECINCT ALLEGATION : 1. FAIL TO SAFEGUARD DEPT EQUIPMENT - DEPT CELLULAR PHONE(SUBSTANTIATED) ALLEGATION : 2. MISSING DEPARTMENT EQUIPMENT - DEPT CELLULAR PHONE(SUBSTANTIATED) CASE STATUS : CLOSED CLOSED DATE : 2023-12-22 ACTION TAKEN : SCHEDULE A COMMAND DISCIPLINE
950897	MODESTO, FABIAN	SGT	094	2591	DTS	067	2023-16177	INTERNAL INVESTIGATION	08/27/2023	UPDATE	IAB LOG # : 23-25031 ICMT CASE # : OG23-12529 REFERRED TO : 067 - 67TH PRECINCT ALLEGATION : 1. DISPUTED SEARCH OF A VEHICLE - NO ENFORCEMENT ACTION TAKEN(EXONERATED) ALLEGATION : 2. FADO ABUSE OF AUTHORITY - SEARCH OF A VEHICLE - NO ENFORCEMENT ACTION TAKEN(EXONERATED) ALLEGATION : 3. FAIL TO PREPARE REPORT - OTHER REPORT(EXONERATED) ALLEGATION : 4. DISPUTED STOP OF A VEHICLE - NO ENFORCEMENT ACTION TAKEN(EXONERATED) ALLEGATION : 5. FADO ABUSE OF AUTHORITY - STOP OF A VEHICLE - NO ENFORCEMENT ACTION TAKEN(EXONERATED) CASE STATUS : CLOSED CLOSED DATE : 2024-01-05 ACTION TAKEN : NO ACTION TAKEN
950897	MODESTO, FABIAN	SGT	094	2591	DTS	067	2023-113	COMMAND DISCIPLINE-B	07/17/2023	UPDATE	D.A.O. #117/2023. DADS #2023-28285. COMMAND SERIAL NO.2023-067-27 - SUBSTANTIATED CCRB CASE NO. 202205245 1. AT THE TIME, DATE, AND LOCATION ABOVE, DETECTIVE FABIAN MODESTO, WHILE ASSIGNED TO THE 67TH PRECINCT AND HOLDING THE RANK OF POLICE OFFICER, QUESTIONED AN INDIVIDUAL KNOWN TO THE DEPARTMENT, WITHOUT SUFFICIENT LEGAL AUTHORITY. 2. AT THE TIME, DATE, AND LOCATION ABOVE, DETECTIVE FABIAN MODESTO, WHILE ASSIGNED TO THE 67TH PRECINCT AND HOLDING THE RANK OF POLICE OFFICER, SEARCHED THE VEHICLE IN WHICH SAID INDIVIDUAL WAS AN OCCUPANT, WITHOUT SUFFICIENT

											LEGAL AUTHORITY. 3. AT THE TIME, DATE, AND LOCATION ABOVE, DETECTIVE FABIAN MODESTO, WHILE ASSIGNED TO THE 67TH PRECINCT AND HOLDING THE RANK OF POLICE OFFICER, FAILED TO PROVIDE SAID INDIVIDUAL WITH A BUSINESS CARD. **DISPOSITION: SUBSTANTIATED. FORFEITURE OF THREE (3) VACATION DAYS. ****ADJUDICATED ON 07/17/23****
950897	MODESTO, FABIAN	SGT	094	2591	DTS	067	2023-24507	INTERNAL INVESTIGATION	07/04/2023	UPDATE	IAB LOG # : 23-18799 ICMS CASE # : FI23-659 REFERRED TO : INVESTIGATIONS UNIT 32 (I32) ALLEGATION : 1. USE OF FORCE - LEVEL 2(INFO. AND INTELLIGENCE) ALLEGATION : 2. FORCE - PHYSICAL FORCE(EXONERATED) ALLEGATION : 3. FADO FORCE - PHYSICAL FORCE(INFO. AND INTELLIGENCE) ALLEGATION : 4. PRISONER INCIDENT - INJURED IN NYPD CUSTODY - MOS INVOLVED(INFO. AND INTELLIGENCE) CASE STATUS : CLOSED OVERALL DISPOSITION : UNFOUNDED CLOSED DATE : 2024-02-09 ACTION TAKEN : NO ACTION TAKEN
950897	MODESTO, FABIAN	SGT	094	2591	DTS	067	2023-7180	INTERNAL INVESTIGATION	01/21/2023	UPDATE	IAB LOG # : 23-1883 ICMT CASE # : M23-89 REFERRED TO : 164 - PATROL BOROUGH BKLYN SOUTH ALLEGATION : 1. OTHER DEPT RULES/PROCEDURES VIOLATION -(SUBSTANTIATED) - IMPROPER PLACEMENT OF RMP DURING CAR STOP. CASE STATUS : CLOSED CLOSED DATE : 2023-04-28 ACTION TAKEN : LETTER OF INSTRUCTION
950897	MODESTO, FABIAN	SGT	094	2591	DTS	067	2022-34	COMMAND DISCIPLINE-B	11/12/2022	UPDATE	D.A.O.#136/2022. DADS #2022-26794. - PURSUANT TO AN INTERNAL INVESTIGATION CONDUCTED UNDER IAB LOG #2022-1898, IT WAS DETERMINED, OFFICER MODESTO WHILE ON DUTY ASSIGNED TO THE 67TH PRECINCT, USED OFFENSIVE LANGUAGE TOWARDS AN ARRESTEE, TO WIT: SAID POLICE OFFICER FABIAN MODESTO STATED, "NIGGER GET DOWN!", IN VIOLATION OF A.G. 304-06 PAGE 1 PARA 2, PROHIBITED CONDUCT. ADDITIONALLY SAID POLICE OFFICER FABIAN MODESTO, WHILE ON DUTY AND

											ASSIGNED TO THE 67TH PRECINCT, ON JANUARY 22, 2022, IN KINGS COUNTY, FAILED TO ACTIVATE HIS BWC IN A TIMELY MANNER, IN VIOLATION OF P., G. 212-123, PAGE 1 PARA 4, USE OF BWCS. **DISPOSITION: SUBSTANTITED. FORFEITURE OF ONE (1) VACATION DAY. ****ADJUDICATED ON 11/12/2022****
950897	MODESTO, FABIAN	SGT	094	2591	POM	067	2022-8949	INTERNAL INVESTIGATION	05/22/2022	UPDATE	IAB LOG # : 22-12191 ICMT CASE # : OG22-5719 REFERRED TO : 067 - 67TH PRECINCT ALLEGATION : 1. FAIL TO SAFEGUARD DEPT EQUIPMENT - BODY WORN CAMERA(EXONERATED) ALLEGATION : 2. MISSING DEPARTMENT EQUIPMENT - BODY WORN CAMERA(EXONERATED) CASE STATUS : CLOSED CLOSED DATE : 2022-07-13 ACTION TAKEN : NO ACTION TAKEN
950897	MODESTO, FABIAN	SGT	094	2591	POM	067	2022-11064	INTERNAL INVESTIGATION	01/27/2022	UPDATE	IAB LOG # : 22-1898 ICMT CASE # : FI22-51 REFERRED TO : 164 - PATROL BOROUGH BKLYN SOUTH ALLEGATION : 1. USE OF FORCE - LEVEL 2(INFO. AND INTELLIGENCE) ALLEGATION : 2. PRISONER INCIDENT - INJURED PRIOR TO NYPD CUSTODY - MOS INVOLVED(INFO. AND INTELLIGENCE) ALLEGATION : 3. ON DUTY TRAFFIC INCIDENT - VEHICLE PURSUIT - OTHER(UNSUBSTANTIATED) ALLEGATION : 4. FORCE - PHYSICAL FORCE(EXONERATED) ALLEGATION : 5. FADO FORCE - PHYSICAL FORCE(INFO. AND INTELLIGENCE) ALLEGATION : 6. BODY WORN CAMERA - FAIL TO ACTIVATE TIMELY MANNER(SUBSTANTIATED) ALLEGATION : 7. OTHER DEPT RULES/PROCEDURES VIOLATION -(SUBSTANTIATED) - DISPARAGING REMARK CASE STATUS : CLOSED CLOSED DATE : 2022-08-05 ACTION TAKEN : CHARGES AND SPECIFICATIONS
950897	MODESTO, FABIAN	SGT	094	2591	POM	067	2021-10669	INTERNAL INVESTIGATION	08/12/2021	UPDATE	IAB LOG # : 21-17628 ICMT CASE # : OG21-9015 REFERRED TO : 067 - 67TH PRECINCT ALLEGATION : 1. BODY WORN CAMERA - FAIL TO ACTIVATE TIMELY MANNER(UNSUBSTANTIATED) CASE STATUS : CLOSED CLOSED DATE : 2021-

											09-30 ACTION TAKEN : NO ACTION TAKEN
950897	MODESTO, FABIAN	SGT	094	2591	POM	067	2021-4734	INTERNAL INVESTIGATION	02/20/2021	UPDATE	IAB LOG # : 21-3652 ICMT CASE # : M21-248 REFERRED TO : 164 - PATROL BOROUGH BKLYN SOUTH ALLEGATION : 1. PROFILING - RACE/COLOR/ETHNICITY/NATIONAL - BLACK(UNSUBSTANTIATED) ALLEGATION : 2. DISPUTED SEARCH OF A VEHICLE - ENFORCEMENT ACTION TAKEN - ARREST/SUMMONS(EXONERATED) ALLEGATION : 3. FADO ABUSE OF AUTHORITY - SEARCH OF A VEHICLE - ENFORCEMENT ACTION TAKEN(INFO. AND INTELLIGENCE) ALLEGATION : 4. DISPUTED STOP OF A VEHICLE - ENFORCEMENT ACTION TAKEN - ARREST/SUMMONS(UNSUBSTANTIATED) CASE STATUS : CLOSED CLOSED DATE : 2021-05-21 ACTION TAKEN : NO ACTION TAKEN
950897	MODESTO, FABIAN	SGT	094	2591	POM	067	2020-2161	INTERNAL INVESTIGATION	01/31/2020	UPDATE	IAB LOG # : 20-2446 ICMT CASE # : OG20-1274 REFERRED TO : 067 - 67TH PRECINCT ALLEGATION : 1. DISPUTED STOP OF A PERSON - ENFORCEMENT ACTION TAKEN - ARREST/SUMMONS(UNSUBSTANTIATED) CASE STATUS : CLOSED CLOSED DATE : 2020-03-24 ACTION TAKEN : NO ACTION TAKEN
950897	MODESTO, FABIAN	SGT	094	2591	POM	067	2018-11077	INTERNAL INVESTIGATION	05/14/2018	UPDATE	IAB LOG # : 18-18345 ICMT CASE # : OG18-9279 REFERRED TO : 067 - 67TH PRECINCT ALLEGATION : 1. MEMOBOOK INCOMPLETE/IMPROPER - (SUBSTANTIATED) CASE STATUS : CLOSED CLOSED DATE : 2018-06-19 ACTION TAKEN : NO ACTION TAKEN
950897	MODESTO, FABIAN	SGT	094	2591	POM	067	2018-1290	DEPT. AUTO ACCIDENT	04/25/2018	UPDATE	UTO ACCIDENT (AT FAULT)

950897	MODESTO, FABIAN	SGT	094	2591	POM	067	2018-3315	INTERNAL INVESTIGATION	04/09/2018	UPDATE	IAB LOG # : 18-12817 ICMT CASE # : FI18-824 REFERRED TO : 164 - PATROL BOROUGH BKLYN SOUTH ALLEGATION : 1. FADO FORCE - PHYSICAL FORCE(INFO. AND INTELLIGENCE) ALLEGATION : 2. DISPUTED STOP OF A PERSON - NO ENFORCEMENT ACTION TAKEN - QUESTIONED AND FRISKED(EXONERATED) ALLEGATION : 3. FADO FORCE - STRUCK AGAINST OBJECT(INFO. AND INTELLIGENCE) ALLEGATION : 4. USE OF FORCE - LEVEL 2(UNSUBSTANTIATED) ALLEGATION : 5. FAIL TO PREPARE REPORT - TRI REPORT(UNSUBSTANTIATED) CASE STATUS : CLOSED CLOSED DATE : 2018-06-25 ACTION TAKEN : NO ACTION TAKEN
950897	MODESTO, FABIAN	SGT	094	2591	POM	067	2017-6013	INTERNAL INVESTIGATION	10/12/2017	UPDATE	I/A 17-39843 10/12/2017 ALLEG: PRISONER INCIDENT- INJURED PRIOR TO NYPD CUSTODY- MOS INVOLVED USE OF FORCE- LEVEL 4 FIREARMS DISCHARGE UNIT ASSIGN: FID DISP: PENDING CASE CLOSED: PENDING (LN)
950897	MODESTO, FABIAN	SGT	094	2591	POM	067	2017-50	FIREARMS DISCHARGE	10/12/2017	UPDATE	WITHIN DEPT GUIDELINES NO CORRECTIVE ACTION
950897	MODESTO, FABIAN	SGT	094	2591	POM	067	2017-5420	INTERNAL INVESTIGATION	09/19/2017	UPDATE	IA# 17-36414, 17-36793 09/19/17 ALLEGATION: USE OF FORCE - LEVEL 2 AIDED NON MOS INJURED - IN NYPD CUSTODY - POLICE INVOLVED FADO FORCE-PHYSICAL FORCE ADDITIONAL INFORMATION-PRIOR LOG ASSIGNED UNIT: PBBS I/U DISPOSITION: INFORMATION & INTELLIGENCE CASE CLOSED: 10/03/18 (RC)
950897	MODESTO, FABIAN	SGT	094	2591	POM	067	2017-9797	INTERNAL INVESTIGATION	06/21/2017	UPDATE	I/A 06/21/2017 2017-23841 (G54) C17-325 950897 ALLEG: FORCE - PHYSICAL FORCE - UNSUBSTANTIATED FORCE - HANDCUFFS USED TO CAUSE PAIN - UNSUBSTANTIATED FAIL TO PREPARE REPORT - TRI REPORT - UNSUBSTANTIATED USE OF FORCE - LEVEL 3 - INFO. AND INTELLIGENCE FADO FORCE - PHYSICAL FORCE - INFO. AND INTELLIGENCE FADO FORCE - HANDCUFFS USED TO CAUSE PAIN - INFO. AND INTELLIGENCE AIDED NON MOS INJURED - IN NYPD CUSTODY -

[illegible]

Comprehensive Officer History

DTS FABIAN R MODESTO [950897/7125]

Shield: 7125 Hire date: Jul 06, 2011

Current assignment(s):

Bureau: 130-PATROL SERVICES BUREAU

Boro/Division: 164-PATROL BORO BKLYN SOUTH

Precinct/Command: 067-067 PRECINCT

OG - Outside Guidelines **IA number: 12-44148** **Received: Aug 20, 2012 06:45**

Case number:

Complainant/victim:

[REDACTED]

Linked address(s):

Complainant Residence: [REDACTED]

Linked phone(s):

Home Phone: [REDACTED]

Cell Phone: [REDACTED]

Officers/subjects:

DTS FABIAN R MODESTO [950897/7125]

Officer current info:

Bureau: 130-PATROL SERVICES BUREAU

Boro/Division: 164-PATROL BORO BKLYN SOUTH

Precinct/Command: 067-067 PRECINCT

Snapshot - officer information at time of incident:

Badge/ID no: 950897

Bureau: 130-PATROL SERVICES BUREAU

Boro/Division: 164-PATROL BORO BKLYN SOUTH

Precinct/Command: 164-PATROL BORO BKLYN SOUTH

Borough Residence: [REDACTED]

Precinct Residence: [REDACTED]

Rank/title: POM

Age: 26 Years of employment: 1 Years with unit:

In uniform: No Off duty: No Off duty employed: No

Allegations:

Disputed Summons -

Summary:

(JJD) 08/20/12 @ 0645 hrs Received OCD#201204673***DISPUTED SUMMONS***The C/V [REDACTED] stated the following: C/V stated that her son and two of his friends were issued summons [REDACTED] by [REDACTED]

S/O Tax#950897, for fighting when there was no evidence of any fighting.(JJD)

When/where:

Date/time occurred: Apr 11 2012 21:00

Incident Location: 60 East East 93rd St Brooklyn NY Precinct: 067-067 Pct.
County: Brooklyn South

Associated Case numbers:

201204673 OCD-CCRB FOR ICIS
201204673 IAPRO OCD

Status/assignment information:

Status: Active

Opened: 08/22/2012 Assigned: Due: Completed:

Disposition:

Unit assigned: Chief Of Dept. Inv & Rev
Handled at field/unit level: No
Investigator assign: UN-ASSIGNED
Supervisor assign: UN-ASSIGNED
Source of information:

Organizational component(s):

Bureau: 130-PATROL SERVICES BUREAU
Boro/Division: 164-PATROL BORO BKLYN SOUTH
Precinct/Command: 164-PATROL BORO BKLYN SOUTH

[REDACTED]

Incident count: 1

[REDACTED] [REDACTED]



NYPD - Personnel Profile Report



TAX ID, NAME AND COMMAND INFORMATION

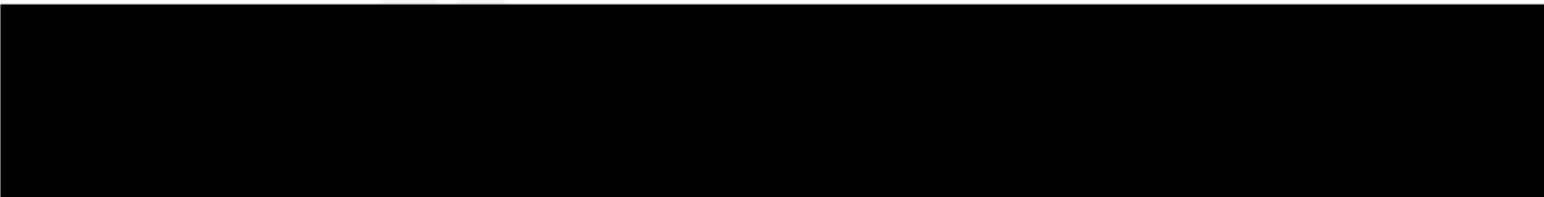
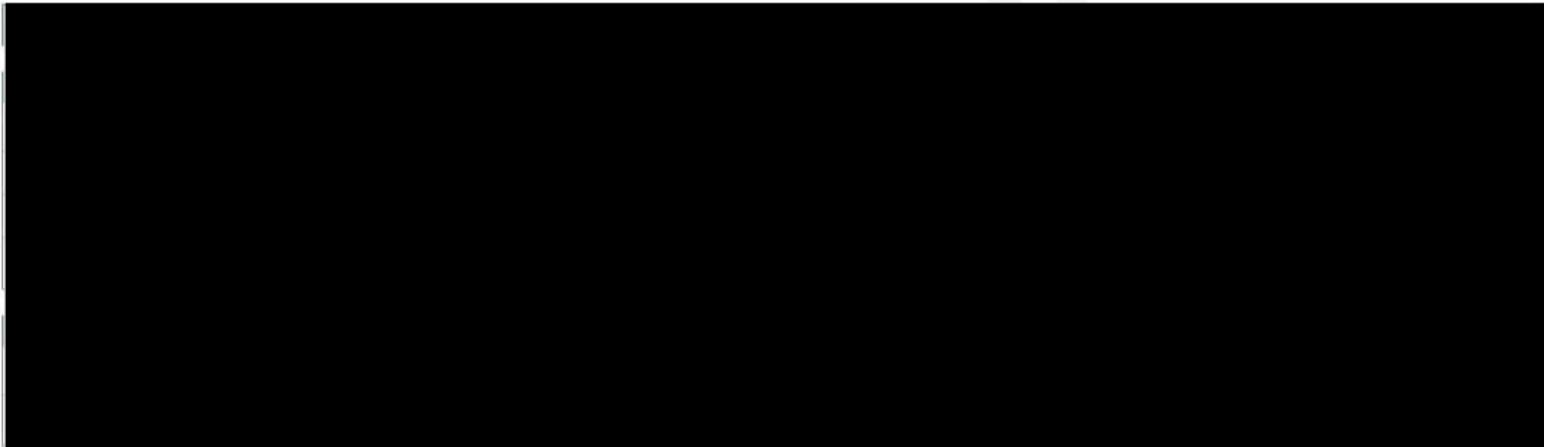


Rank/Title	SERGEANT	Rank/Title Date	02/23/2024
Name	MODESTO, FABIAN R	Shield Number	2591
Tax ID	950897	Appointment Date	07/06/2011
Command	094-094 PRECINCT	Assignment Date	03/25/2024
Home Command		Retroactive Appointment Date	

Role	PUBLIC SAFETY SERGEANT	Role Start Date	04/10/2024	
Status	ACTIVE	Status Start Date	07/06/2011	Status Ends On
Investigative Time	OFF	Total Days Accumulated		

COMMAND ROSTER

Category	Position	Other CMD	Start Tour	End Tour	RDO
Specialty Units	Public Safety Team 2				



EMERGENCY INFORMATION

Member Blood Type UNKNOWN

RELATIVES IN DEPARTMENT INFORMATION

Tax ID 948251	Name MODESTO, GLADYS N	Relationship SIBLING	Status INACTIVE
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TITLE INFORMATION					
Appointed					
Action	PROMOTION/UPGRADE/MATURATION	Title	SERGEANT	Class	PERMANENT
Seniority	02/23/2024			Effective	02/23/2024
Leave					
Action		Title		Class	
Seniority				Effective	
Designated					
Action		Title		Class	
Seniority				Effective	

Effective Title					
Action	PROMOTION/UPGRADE/MATURATION	Title	SERGEANT	Effective	02/23/2024
Civilian/Uniform	UNIFORM	Managerial/Executive	NO	Safety	YES
Rank	SGT	Class	PERMANENT		
Seniority	02/23/2024	Full/Part-Time	FULL-TIME		

TEST INFORMATION			
Test Type	SERGEANT	Test Number	02538
		List Number	0546
List Fraction		Date Created	
		Expiration Date	

SUMMARIZED HISTORY							
Eff Date	Class	Rank/Title	Command	Transfer Type	Status	Role	Authority
07/06/2011	PERMANENT	PO	552-RECRUIT TRAINING SECTION				PO20011
12/31/2011	PERMANENT	PO	5J0-PBBS 67 PCT IMPACT ZONE				PO00212
06/20/2013	PERMANENT	PO	067-067 PRECINCT				PO17913
08/26/2022	PERMANENT	DTS	067-067 PRECINCT				PO21122
02/23/2024	PERMANENT	SGT	352-UNIFORMED PROMOTIONS TRN UNIT				PO04224
03/25/2024	PERMANENT	SGT	094-094 PRECINCT				PO08324
Total 6 of 6 Records							

HISTORY	
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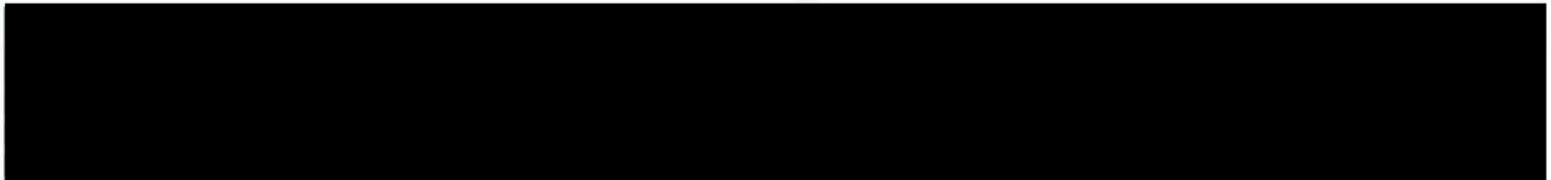
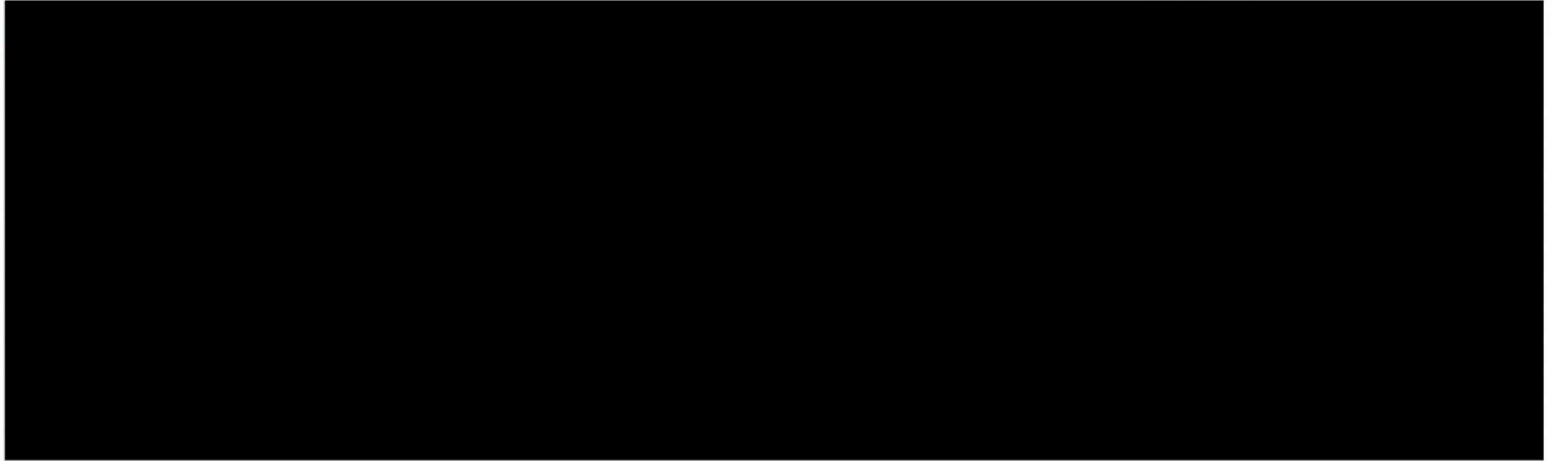
EFFECTIVE TITLE HISTORY			
Effective Date	Class	Title	Authority
07/06/2011	PERMANENT	POLICE OFFICER	PO20011
08/26/2022	PERMANENT	DETECTIVE SPECIALIST	PO21122
02/23/2024	PERMANENT	SERGEANT	PO04224
Total 3 of 3 Records			

SKILLS SUMMARY

Skill

SPANISH UNDERSTAND,SPEAK

Total 1 of 1 Records



ARREST SUMMARY

Arrests	Felonies	Misdemeanors	Violations	Infractions	Other
141	68	64	8	1	0

Arrests Resisted: 4

EVALUATIONS HISTORY

Cmd	Rating Period From	Rating Period To	Overall Rating	Purpose	Rater Rank	Rater Name	Appeal
164-PATROL BORO BKLYN SOUTH	11/06/2011	05/05/2012	3	10 MONTHS PROB.	SGT	AUSTIN, COLIN W	No
164-PATROL BORO BKLYN SOUTH	05/06/2012	11/05/2013	3.5	22 MONTHS PROB.	SGT	BARTLEY, BRIAN M	No
067-067 PRECINCT	11/09/2012	05/08/2013	3.5	16 MONTHS PROB.	SGT	BARTLEY, BRIAN M	No
067-067 PRECINCT	12/16/2012	12/15/2013	3.5	ANNUAL	SGT	BARTLEY, BRIAN M	No
067-067 PRECINCT	12/16/2013	12/15/2014	4	ANNUAL	SGT	BARTLEY, BRIAN M	No
067-067 PRECINCT	12/16/2014	12/15/2015	4	ANNUAL	SGT	BARTLEY, BRIAN M	No
067-067 PRECINCT	01/01/2016	12/31/2016	4	ANNUAL	SGT	SCHULMAN, BRIAN J	No

Cmd	Rating Period From	Rating Period To	Overall Rating	Purpose	Rater Rank	Rater Name	Appeal
094-094 PRECINCT	06/23/2024	12/24/2024	4.5	10 MONTHS PROB.	LT	LEVY, DANIEL M	No
094-094 PRECINCT	03/25/2025	07/25/2025	4	4 MONTHS PROB.	LT	LEVY, DANIEL M	No
Total 9 of 9 Records							

PERF HISTORY							
Rank	Rating Year	Overall Score	Overall Evaluation	Purpose	Eval Type	Rater Rank	Rater Name
SGT	2017	96	EXCEPTIONAL	ANNUAL	ORIGINAL	LT	LOPEZ, KRISTOPHER
SGT	2018	89	EXCEEDS EXPECTATIONS	ANNUAL	ORIGINAL	LT	LOPEZ, KRISTOPHER
SGT	2019	95	EXCEPTIONAL	ANNUAL	ORIGINAL	LT	LOPEZ, KRISTOPHER
SGT	2020	96	EXCEPTIONAL	ANNUAL	ORIGINAL	SGT	WHITEMAN, MICHAEL
SGT	2021	96	EXCEPTIONAL	ANNUAL	ORIGINAL	SGT	COX, ROBERT
SGT	2022	94	EXCEPTIONAL	ANNUAL	ORIGINAL	SGT	COX, ROBERT
SGT	2023	100	EXCEPTIONAL	ANNUAL	ORIGINAL	SGT	MCBRIDE, PATRICK
Total 7 of 7 Records							

MILITARY INFORMATION SUMMARY					
Military Reserve Status	Military Branch	Military Rank	Military Excusal	Military Contract Date	Military End Date
NOT IN RESERVE	NOT IN RESERVE	NOT IN RESERVE	NO EXCUSAL		

RECENT FIREARM DISCHARGE HISTORY			
Event Date	Event #	Event Type	Comments
10/12/2017	2017-50	FIREARMS DISCHARGE	WITHIN DEPT GUIDELINESNO CORRECTIVE ACTION
Total 1 of 1 Records			

VEHICLE ACCIDENT SUMMARY	
Number of Accidents :	4
Number of Accidents At Fault :	2

DEPARTMENT RECOGNITION SUMMARY			
MERITORIOUS POLICE DUTY	46	EXCELLENT POLICE DUTY	19
COMMENDATION	2		
Total number of Medals: 67			

CPI HISTORY			
Event Date	Event #	Event Type	Comments
01/13/2025	2025-623	INTERNAL INVESTIGATION	IAB LOG # : 25-1084ICMT CASE # : OG25-518REFERRED TO : 094 - 94TH PRECINCTALLEGATION : 1. MEMOBOOK INCOMPLETE/IMPROPER -(EXONERATED)ALLEGATION : 2. FAIL TO PREPARE REPORT - OTHER REPORT(EXONERATED)CASE STATUS : CLOSEDCLOSED DATE : 2025-02-20ACTION TAKEN : NO ACTION TAKEN

Event Date	Event #	Event Type	Comments
12/17/2024	2024-776	CHARGES & SPECS	██████████ DEPUTY CHIEF PROSECUTOR, CC. PROSECUTOR ██████████ ██████████ NYC CCRB - C-032462 - 1. SERGEANT FABIAN MODESTO, ON OR ABOUT AUGUST 17, 2023, AT APPROXIMATELY 0033, WHILE ASSIGNED TO 067 PCT AND ON DUTY, IN THE VICINITY OF 1925 NOSTRAND AVENUE, LUCKY 7 DELI, KINGS COUNTY, ABUSED THEIR AUTHORITY AS A MEMBER OF THE NEW YORK CITY POLICE DEPARTMENT, IN THAT SGT. MODESTO QUESTIONED ██████████ WITHOUT SUFFICIENT LEGAL AUTHORITY. 2. SERGEANT FABIAN MODESTO, ON OR ABOUT AUGUST 17, 2023, AT APPROXIMATELY 0033, WHILE ASSIGNED TO 067 PCT AND ON DUTY, IN THE VICINITY OF 1925 NOSTRAND AVENUE, LUCKY 7 DELI, KINGS COUNTY, ABUSED THEIR AUTHORITY AS A MEMBER OF THE NEW YORK CITY POLICE DEPARTMENT, IN THAT SGT. MODESTO SEARCHED THE VEHICLE IN WHICH ██████████ WAS AN OCCUPANT WITHOUT SUFFICIENT LEGAL AUTHORITY. 3. SERGEANT FABIAN MODESTO, ON OR ABOUT AUGUST 17, 2023, AT APPROXIMATELY 0033, WHILE ASSIGNED TO 067 PCT AND ON DUTY, IN THE VICINITY OF 1925 NOSTRAND AVENUE, LUCKY 7 DELI, KINGS COUNTY, ABUSED THEIR AUTHORITY SAS A MEMBER OF THE NEW YORK CITY POLICE DEPARTMENT, IN THAT SGT. MODESTO FAILED TO PROVIDE ██████████ WITH A BUSINESS CARD WITHOUT POLICE NECESSITY. 4. SERGEANT FABIAN MODESTO, ON OR ABOUT AUGUST 17, 2023, AT APPROXIMATELY 0033, WHILE ASSIGNED TO 067 PCT AND ON DUTY, IN THE VICINITY 1925 NOSTRAND AVENUE, LUCKY 7 DELI, KINGS COUNTY, ABUSED THEIR AUTHORITY AS A MEMBER OF THE NEW YORK CITY POLICE DEPARTMENT, IN THAT SGT. MODESTO TOOK LAW ENFORCEMENT ACTION BASED UPON ACTUAL OR PERCEIVED RACE. **DISPOSITION PENDING**
10/29/2024	2024-23209	INTERNAL INVESTIGATION	IAB LOG # : 24-31429ICMS CASE # : OG24-14806REFERRED TO : GROUP 31 (G31)ALLEGATION : 1. INVOICE DISCREPANCY - LAB - CONTROLLED SUBSTANCE(INFO. AND INTELLIGENCE)ALLEGATION : 2. REPORT INCOMPLETE/INACCURATE - PROPERTY CLERK INVOICE(SUBSTANTIATED)CASE STATUS : CLOSEDOVERALL DISPOSITION :SUBSTANTIATEDCLOSED DATE : 2025-01-15ACTION TAKEN : SCHEDULE A COMMAND DISCIPLINE
10/15/2024	2024-17329	INTERNAL INVESTIGATION	IAB LOG # : 24-30363ICMT CASE # : OG24-14074REFERRED TO : 094 - 94TH PRECINCTALLEGATION : 1. FAIL TO SAFEGUARD DEPT EQUIPMENT - DEPT CELLULAR PHONE(SUBSTANTIATED)ALLEGATION : 2. MISSING DEPARTMENT EQUIPMENT - DEPT CELLULAR PHONE(SUBSTANTIATED)CASE STATUS : CLOSEDCLOSED DATE : 2024-11-19ACTION TAKEN : VERBAL OF INSTRUCTIONS
05/01/2024	2024-6711	INTERNAL INVESTIGATION	IAB LOG # : 24-12048ICMT CASE # : OG24-5769REFERRED TO : 094 - 94TH PRECINCTALLEGATION : 1. MEMOBOOK INCOMPLETE/IMPROPER -(EXONERATED)ALLEGATION : 2. FAIL TO PREPARE REPORT - STOP QUESTION FRISK REPORT(EXONERATED)CASE STATUS : CLOSEDCLOSED DATE : 2024-06-19ACTION TAKEN : NO ACTION TAKEN
10/24/2023	2023-19813	INTERNAL INVESTIGATION	IAB LOG # : 23-31333ICMT CASE # : OG23-15439REFERRED TO : 067 - 67TH PRECINCTALLEGATION : 1. FAIL TO SAFEGUARD DEPT EQUIPMENT - DEPT CELLULAR PHONE(SUBSTANTIATED)ALLEGATION : 2. MISSING DEPARTMENT EQUIPMENT - DEPT CELLULAR PHONE(SUBSTANTIATED)CASE STATUS : CLOSEDCLOSED DATE : 2023-12-22ACTION TAKEN : SCHEDULE A COMMAND DISCIPLINE

Event Date	Event #	Event Type	Comments
08/27/2023	2023-16177	INTERNAL INVESTIGATION	IAB LOG # : 23-25031ICMT CASE # : OG23-12529REFERRED TO : 067 - 67TH PRECINCTALLEGATION : 1. DISPUTED SEARCH OF A VEHICLE - NO ENFORCEMENT ACTION TAKEN(EXONERATED)ALLEGATION : 2. FADO ABUSE OF AUTHORITY - SEARCH OF A VEHICLE - NO ENFORCEMENT ACTION TAKEN(EXONERATED)ALLEGATION : 3. FAIL TO PREPARE REPORT - OTHER REPORT(EXONERATED)ALLEGATION : 4. DISPUTED STOP OF A VEHICLE - NO ENFORCEMENT ACTION TAKEN(EXONERATED)ALLEGATION : 5. FADO ABUSE OF AUTHORITY - STOP OF A VEHICLE - NO ENFORCEMENT ACTION TAKEN(EXONERATED)CASE STATUS : CLOSEDCLOSED DATE : 2024-01-05ACTION TAKEN : NO ACTION TAKEN
07/17/2023	2023-113	COMMAND DISCIPLINE-B	D.A.O. #117/2023. DADS #2023-28285. COMMAND SERIAL NO.2023-067-27 - SUBSTANTIATED CCRB CASE NO. 2022052451. AT THE TIME, DATE, AND LOCATION ABOVE, DETECTIVE FABIAN MODESTO, WHILE ASSIGNED TO THE 67TH PRECINCT AND HOLDING THE RANK OF POLICE OFFICER, QUESTIONED AN INDIVIDUAL KNOWN TO THE DEPARTMENT, WITHOUT SUFFICIENT LEGAL AUTHORITY.2. AT THE TIME, DATE, AND LOCATION ABOVE, DETECTIVE FABIAN MODESTO, WHILE ASSIGNED TO THE 67TH PRECINCT AND HOLDING THE RANK OF POLICE OFFICER, SEARCHED THE VEHICLE IN WHICH SAID INDIVIDUAL WAS AN OCCUPANT, WITHOUT SUFFICIENT LEGAL AUTHORITY.3. AT THE TIME, DATE, AND LOCATION ABOVE, DETECTIVE FABIAN MODESTO, WHILE ASSIGNED TO THE 67TH PRECINCT AND HOLDING THE RANK OF POLICE OFFICER, FAILED TO PROVIDE SAID INDIVIDUAL WITH A BUSINESS CARD.**DISPOSITION: SUBSTANTIATED. FORFEITURE OF THREE (3) VACATION DAYS.**ADJUDICATED ON 07/17/23****
07/04/2023	2023-24507	INTERNAL INVESTIGATION	IAB LOG # : 23-18799ICMS CASE # : FI23-659REFERRED TO : INVESTIGATIONS UNIT 32 (I32)ALLEGATION : 1. USE OF FORCE - LEVEL 2(INFO. AND INTELLIGENCE)ALLEGATION : 2. FORCE - PHYSICAL FORCE(EXONERATED)ALLEGATION : 3. FADO FORCE - PHYSICAL FORCE(INFO. AND INTELLIGENCE)ALLEGATION : 4. PRISONER INCIDENT - INJURED IN NYPD CUSTODY - MOS INVOLVED(INFO. AND INTELLIGENCE)CASE STATUS : CLOSEDOVERALL DISPOSITION : UNFOUNDEDCLOSED DATE : 2024-02-09ACTION TAKEN : NO ACTION TAKEN
01/21/2023	2023-7180	INTERNAL INVESTIGATION	IAB LOG # : 23-1883ICMT CASE # : M23-89REFERRED TO : 164 - PATROL BOROUGH BKLYN SOUTHALLEGATION : 1. OTHER DEPT RULES/PROCEDURES VIOLATION -(SUBSTANTIATED) - IMPROPER PLACEMENT OF RMP DURING CAR STOP.CASE STATUS : CLOSEDCLOSED DATE : 2023-04-28ACTION TAKEN : LETTER OF INSTRUCTION
11/12/2022	2022-34	COMMAND DISCIPLINE-B	D.A.O.#136/2022. DADS #2022-26794. - PURSUANT TO AN INTERNAL INVESTIGATION CONDUCTED UNDER IAB LOG #2022-1898, IT WAS DETERMINED, OFFICER MODESTO WHILE ON DUTY ASSIGNED TO THE 67TH PRECINCT, USED OFFENSIVE LANGUAGE TOWARDS AN ARRESTEE, TO WIT: SAID POLICE OFFICER FABIAN MODESTO STATED, "NIGGER GET DOWN!", IN VIOLATION OF A.G. 304-06 PAGE 1 PARA 2, PROHIBITED CONDUCT. ADDITIONALLY SAID POLICE OFFICER FABIAN MODESTO, WHILE ON DUTY AND ASSIGNED TO THE 67TH PRECINCT, ON JANUARY 22, 2022, IN KINGS COUNTY, FAILED TO ACTIVATE HIS BWC IN A TIMELY MANNER, IN VIOLATION OF P., G. 212-123, PAGE 1 PARA 4, USE OF BWCs.**DISPOSITION: SUBSTANTITED. FORFEITURE OF ONE (1) VACATION DAY.****ADJUDICATED ON 11/12/2022****

Event Date	Event #	Event Type	Comments
05/22/2022	2022-8949	INTERNAL INVESTIGATION	IAB LOG # : 22-12191CMT CASE # : OG22-5719REFERRED TO : 067 - 67TH PRECINCTALLEGATION : 1. FAIL TO SAFEGUARD DEPT EQUIPMENT - BODY WORN CAMERA(EXONERATED)ALLEGATION : 2. MISSING DEPARTMENT EQUIPMENT - BODY WORN CAMERA(EXONERATED)CASE STATUS : CLOSEDCLOSED DATE : 2022-07-13ACTION TAKEN : NO ACTION TAKEN
01/27/2022	2022-11064	INTERNAL INVESTIGATION	IAB LOG # : 22-18981CMT CASE # : FI22-51REFERRED TO : 164 - PATROL BOROUGH BKLYN SOUTHALLEGATION : 1. USE OF FORCE - LEVEL 2(INFO. AND INTELLIGENCE)ALLEGATION : 2. PRISONER INCIDENT - INJURED PRIOR TO NYPD CUSTODY - MOS INVOLVED(INFO. AND INTELLIGENCE)ALLEGATION : 3. ON DUTY TRAFFIC INCIDENT - VEHICLE PURSUIT - OTHER(UNSUBSTANTIATED)ALLEGATION : 4. FORCE - PHYSICAL FORCE(EXONERATED)ALLEGATION : 5. FADO FORCE - PHYSICAL FORCE(INFO. AND INTELLIGENCE)ALLEGATION : 6. BODY WORN CAMERA - FAIL TO ACTIVATE TIMELY MANNER(SUBSTANTIATED)ALLEGATION : 7. OTHER DEPT RULES/PROCEDURES VIOLATION -(SUBSTANTIATED) - DISPARAGING REMARKCASE STATUS : CLOSEDCLOSED DATE : 2022-08-05ACTION TAKEN : CHARGES AND SPECIFICATIONS
08/12/2021	2021-10669	INTERNAL INVESTIGATION	IAB LOG # : 21-176281CMT CASE # : OG21-9015REFERRED TO : 067 - 67TH PRECINCTALLEGATION : 1. BODY WORN CAMERA - FAIL TO ACTIVATE TIMELY MANNER(UNSUBSTANTIATED)CASE STATUS : CLOSEDCLOSED DATE : 2021-09-30ACTION TAKEN : NO ACTION TAKEN
02/20/2021	2021-4734	INTERNAL INVESTIGATION	IAB LOG # : 21-36521CMT CASE # : M21-248REFERRED TO : 164 - PATROL BOROUGH BKLYN SOUTHALLEGATION : 1. PROFILING - RACE/COLOR/ETHNICITY/NATIONAL - BLACK(UNSUBSTANTIATED)ALLEGATION : 2. DISPUTED SEARCH OF A VEHICLE - ENFORCEMENT ACTION TAKEN - ARREST/SUMMONS(EXONERATED)ALLEGATION : 3. FADO ABUSE OF AUTHORITY - SEARCH OF A VEHICLE - ENFORCEMENT ACTION TAKEN(INFO. AND INTELLIGENCE)ALLEGATION : 4. DISPUTED STOP OF A VEHICLE - ENFORCEMENT ACTION TAKEN - ARREST/SUMMONS(UNSUBSTANTIATED)CASE STATUS : CLOSEDCLOSED DATE : 2021-05-21ACTION TAKEN : NO ACTION TAKEN
01/31/2020	2020-2161	INTERNAL INVESTIGATION	IAB LOG # : 20-24461CMT CASE # : OG20-1274REFERRED TO : 067 - 67TH PRECINCTALLEGATION : 1. DISPUTED STOP OF A PERSON - ENFORCEMENT ACTION TAKEN - ARREST/SUMMONS(UNSUBSTANTIATED)CASE STATUS : CLOSEDCLOSED DATE : 2020-03-24ACTION TAKEN : NO ACTION TAKEN
05/14/2018	2018-11077	INTERNAL INVESTIGATION	IAB LOG # : 18-183451CMT CASE # : OG18-9279REFERRED TO : 067 - 67TH PRECINCTALLEGATION : 1. MEMOBOOK INCOMPLETE/IMPROPER -(SUBSTANTIATED)CASE STATUS : CLOSEDCLOSED DATE : 2018-06-19ACTION TAKEN : NO ACTION TAKEN
04/25/2018	2018-1290	DEPT. AUTO ACCIDENT	UTO ACCIDENT (AT FAULT)

Event Date	Event #	Event Type	Comments
04/09/2018	2018-3315	INTERNAL INVESTIGATION	IAB LOG # : 18-12817ICMT CASE # : FI18-824REFERRED TO : 164 - PATROL BOROUGH BKLYN SOUTHALLEGATION : 1. FADO FORCE - PHYSICAL FORCE(INFO. AND INTELLIGENCE)ALLEGATION : 2. DISPUTED STOP OF A PERSON - NO ENFORCEMENT ACTION TAKEN - QUESTIONED AND FRISKED(EXONERATED)ALLEGATION : 3. FADO FORCE - STRUCK AGAINST OBJECT(INFO. AND INTELLIGENCE)ALLEGATION : 4. USE OF FORCE - LEVEL 2(UNSUBSTANTIATED)ALLEGATION : 5. FAIL TO PREPARE REPORT - TRI REPORT(UNSUBSTANTIATED)CASE STATUS : CLOSEDCLOSED DATE : 2018-06-25ACTION TAKEN : NO ACTION TAKEN
10/12/2017	2017-50	FIREARMS DISCHARGE	WITHIN DEPT GUIDELINESNO CORRECTIVE ACTION
10/12/2017	2017-6013	INTERNAL INVESTIGATION	I/A 17-39843 10/12/2017ALLEG: PRISONER INCIDENT- INJURED PRIOR TO NYPD CUSTODY- MOS INVOLVEDUSE OF FORCE- LEVEL 4FIREARMS DISCHARGEUNIT ASSIGN: FIDDISP: PENDINGCASE CLOSED: PENDING (LN)
09/19/2017	2017-5420	INTERNAL INVESTIGATION	IA# 17-36414, 17-36793 09/19/17ALLEGATION: USE OF FORCE - LEVEL 2AIDED NON MOS INJURED - IN NYPD CUSTODY - POLICE INVOLVEDFADO FORCE-PHYSICAL FORCEADDITIONAL INFORMATION-PRIOR LOGASSIGNED UNIT: PBBS I/UDISPOSITION: INFORMATION & INTELLIGENCECASE CLOSED: 10/03/18 (RC)
06/21/2017	2017-9797	INTERNAL INVESTIGATION	I/A 06/21/2017 2017-23841 (G54) C17-325 950897ALLEG: FORCE - PHYSICAL FORCE - UNSUBSTANTIATEDFORCE - HANDCUFFS USED TO CAUSE PAIN - UNSUBSTANTIATEDFAIL TO PREPARE REPORT - TRI REPORT - UNSUBSTANTIATEDUSE OF FORCE - LEVEL 3 - INFO. AND INTELLIGENCEFADO FORCE - PHYSICAL FORCE - INFO. AND INTELLIGENCEFADO FORCE - HANDCUFFS USED TO CAUSE PAIN - INFO. AND INTELLIGENCEAIDED NON MOS INJURED - IN NYPD CUSTODY - POLICE INVOLVED - INFO. AND INTELLIGENCEUNIT ASSIGNED: G54DISPOSITION: UNSUBSTANTIATEDCASE CLOSED: 02/15/2019 (GL)
10/18/2016	2016-4243	INTERNAL INVESTIGATION	IA# 15-36225 11/22/15ALLEGATION: FAIL TO TAKE/MAKE REPORTPROFILING-RACE/COLOR/ETHNICITY/NATIONALASSIGNED UNIT: PBBS I/UDISPOSITION: UNSUBSTANTIATEDCASE CLOSED: 09/23/16 (RC)
02/24/2016	2016-828	INTERNAL INVESTIGATION	I/A 14-29454 08/30/2014ALLEG: FAIL TO NOTIFY-IABUNIT ASSIGN: GROUP 32DISP: UNSUBCASE CLOSED: 09/01/2015 (SG)
10/29/2012	2012-1658	DEPT. AUTO ACCIDENT	AUTO ACCIDENT(AT FAULT)
Total 30 of 30 Records			



Resume Report

Search Criteria:

Tax# 950897 FABIAN MODESTO Status: ACTIVE

Command: 094 PRECINCT

Classification	IA Log#	Case Num	Case Open Date	Case Closed Date	Closing Disposition	Full Allegation	Finding	Finding Date	Notes
CC-CIVILIAN COMPLAINT	2024-32339	(CRB) CC-2024-2148	11/08/2024	11/24/2024	RM-INFORMATION AND INTELLIGENCE	Use of Force - Level 2		.	
						Force - Physical Force		.	
						FADO Force - Physical Force		.	
						Use of Prohibited Act - Outlined in PG221 01 - Prohibited Method of Restraint		.	
Log Received Date: 11/01/2024 Top Allegation: USE OF FORCE - LEVEL 2 Log Occ Date From: 09/19/2024 00:00									
FI-FORCE INVESTIGATION	2024-31873	(I31) FI-2024-790	11/01/2024	.		Use of Force - Level 2		.	
						Force - Physical Force		.	
						FADO Force - Physical Force		.	
						Use of Prohibited Act - Outlined in PG221 01 - Prohibited Method of Restraint		.	
Log Received Date: 10/28/2024 Top Allegation: USE OF FORCE - LEVEL 2 Log Occ Date From: 09/19/2024 00:30									
OG-OUTSIDE GUIDELINES	2024-31429	(G31) OG-2024-14806	10/29/2024	.		Invoice Discrepancy - Lab - Controlled Substance		.	
						Report Incomplete/Inaccurate - Property Clerk Invoice		.	
Log Received Date: 10/23/2024 Top Allegation: REPORT INCOMPLETE/INACCURATE - PROPERTY CLERK INVOICE Log Occ Date From: 10/19/2024 04:18									
OG-OUTSIDE GUIDELINES	2024-30363	(094) OG-2024-14074	10/15/2024	11/19/2024	ZS-SUBSTANTIATED	Fail to Safeguard Dept Equipment - Dept Cellular Phone	Substantiated	2024/11/12	Sgt Modesto did lose his department cell phone
						Missing Department Equipment - Dept Cellular Phone	Substantiated	2024/11/12	Sgt Modesto did lose his department cell phone

Log Received Date: 10/12/2024 **Top Allegation:** MISSING DEPARTMENT EQUIPMENT - DEPT CELLULAR PHONE **Log Occ Date From:** 10/12/2024 01:05 to 10/12/2024 01:25

Referrals: (1) :094-094 PRECINCT

OG-OUTSIDE GUIDELINES	2024-12048	(094) OG-2024-5769	05/01/2024 06/19/2024 ZE-EXONERATED	Memobook Incomplete/Improper -	Exonerated	2024/06/13	Sgt Modesto was the recorder on this date, his memobook reflects this. This interaction also did not require the preparation of a stop report so its absence does not matter.
				Fail to Prepare Report - Stop Question Frisk Report	Exonerated	2024/06/13	The incident in question does not require the preparation of a stop report. The subject in this case was stopped for violation, smoking marijuana in a vehicle. The subject even admits to doing this and continues to do it on BWC. There is no subsequent frisk or search of the subject necessitating the preparation of a stop report. At one point because the subject refused to ID himself Sgt Modesto and his partner begin to attempt to remove the subject but after getting his information leave him in the car. No frisk or search is conducted.

Log Received Date: 04/26/2024 **Top Allegation:** FAIL TO PREPARE REPORT - STOP QUESTION FRISK REPORT **Log Occ Date From:** 01/04/2023 21:40

Referrals: (1) :094-094 PRECINCT

OG-OUTSIDE GUIDELINES	2023-31333	(067) OG-2023-15439	10/24/2023 12/22/2023 ZS-SUBSTANTIATED	Fail to Safeguard Dept Equipment - Dept Cellular Phone	Substantiated	2023/12/10	FINDING SUBSTANTIATED AFTER INTERVIEW WITH MOS
				Missing Department Equipment - Dept Cellular Phone	Substantiated	2023/12/10	FINDING SUBSTANTIATED AFTER INTERVIEW WITH MOS

Log Received Date: 10/18/2023 **Top Allegation:** MISSING DEPARTMENT EQUIPMENT - DEPT CELLULAR PHONE **Log Occ Date From:** 10/17/2023 18:30

Referrals: (1) :067-067 PRECINCT

CC-CIVILIAN COMPLAINT	2023-25949 (CRB) CC-2023-1726	08/31/2023 09/01/2023 RM-INFORMATION AND INTELLIGENCE	Disputed Search of a Vehicle - No Enforcement Action Taken	.
			FADO Abuse of Authority - Search of a Vehicle - No Enforcement Action Taken	.
			Fail to Prepare Report - Other Report	.
			Disputed Stop of a Vehicle - No Enforcement Action Taken	.
			FADO Abuse of Authority - Stop of a Vehicle - No Enforcement Action Taken	.
				.

Log Received Date: 08/27/2023 **Top Allegation:** DISPUTED SEARCH OF A VEHICLE - NO ENFORCEMENT ACTION TAKEN **Log Occ Date From:** 08/17/2023 00:00

OG-OUTSIDE GUIDELINES	2023-25031	(067) OG-2023-12529	08/27/2023 01/05/2024 ZE-EXONERATED	Disputed Search of a Vehicle - No Enforcement Action Taken	Exonerated	2023/12/07	Police Officer Modesto acted appropriately and within Department guidelines.
				FADO Abuse of Authority - Search of a Vehicle - No Enforcement Action Taken	Exonerated	2023/12/07	Police Officer Modesto acted appropriately and within Department guidelines.
				Fail to Prepare Report - Other Report	Exonerated	2023/12/07	Police Officer Modesto acted appropriately and within Department guidelines.

Disputed Stop of a Vehicle - No Enforcement Action Taken	Exonerated	2023/12/07	Police Officer Modesto acted appropriately and within Department guidelines.
FADO Abuse of Authority - Stop of a Vehicle - No Enforcement Action Taken	Exonerated	2023/12/07	Police Officer Modesto acted appropriately and within Department guidelines.

Log Received Date: 08/17/2023 **Top Allegation:** DISPUTED SEARCH OF A VEHICLE - NO ENFORCEMENT ACTION TAKEN **Log Occ Date From:** 08/17/2023 00:33

Referrals: (1) :067-067 PRECINCT

CC-CIVILIAN COMPLAINT	2023-19721 (CRB) CC-2023-1305	06/29/2023 07/04/2023	RM-INFORMATION AND INTELLIGENCE	Use of Force - Level 2	.
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Force - Physical Force	.
FADO Force - Physical Force	.
Prisoner Incident - Injured in NYPD Custody - MOS Involved	.

Log Received Date: 06/24/2023 **Top Allegation:** USE OF FORCE - LEVEL 2 **Log Occ Date From:** 06/15/2023 23:24

FI-FORCE INVESTIGATION	2023-18799 (I32) FI-2023-659	07/04/2023 02/09/2024	7-UNFOUNDED
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Use of Force - Level 2	Info. and Intelligence	2024/01/04	A review of BWC showed that Mr. [REDACTED] was pushing the officers, which prompted them to grab him by the arms and place him in handcuffs. It has been concluded that officers used a minimal amount of force to effect an arrest, and there is no basis to support Mr. [REDACTED] allegation of excessive or unnecessary force. This allegation will be closed as Information & Intelligence.
Force - Physical Force	Exonerated	2024/01/04	A review of BWC showed that Mr. [REDACTED] was pushing the officers, which prompted them to grab him by the arms and place him in handcuffs. It has been concluded that officers used a minimal amount of force to effect an arrest, and there is no basis to support Mr. [REDACTED] allegation of excessive or unnecessary force. This allegation will be closed as Exonerated.
FADO Force - Physical Force	Info. and Intelligence	2024/01/04	This allegation will be investigated by CCRB. Information & Intelligence.
Prisoner Incident - Injured in NYPD Custody - MOS Involved	Info. and Intelligence	2024/01/04	On June 16, 2023, while in the custody of this department, the complainant, Mr. [REDACTED] alleged that he was assaulted and choked by the officers. Mr. [REDACTED] complained of chest and shoulder pain, after which he was removed to KCH for medical treatment. Medical treatment of prisoner form was prepared. This allegation is closed as Information & Intelligence.

Log Received Date: 06/16/2023 **Top Allegation:** USE OF FORCE - LEVEL 2 **Log Occ Date From:** 06/15/2023 23:24

F-FILE	2023-17675 (REC) F-2023-3598	06/08/2023 06/08/2023	C5-CLOSED AS PENDING
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Charges & Specifications - CCRB	.
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Log Received Date: 06/06/2023 **Top Allegation:** CHARGES & SPECIFICATIONS - CCRB **Log Occ Date From:** 01/22/2022 23:00 to 01/22/2022 23:00

M- MISCONDUCT	2023-01883 (164) M-2023-89	01/21/2023 04/28/2023	ZP-PARTIALLY SUBSTANTIATED
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Other Dept Rules/Procedures Violation -	Substantiated	2023/04/13	Pursuant to an internal investigation of IAB case log #2023-1883, the case investigator reviewed the BWC incident videos and conducted formal interviews with the subject officers. The following details were revealed. On the incident date and time, Detective Modesto and Police Officer Feng responded to the incident location as a
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backup unit for the other 67th Precinct Public Safety Team. Upon their arrival to the location, they immediately parked their unmarked RMP directly in front of the suspect's vehicle, which placed the police officers in an unsafe tactical position. According to the "NYPD Vehicle Stop ? Best Practices Manual", the proper placement of the secondary unit's vehicle during a car stop should be directly behind the first unit's vehicle. The subject officer was issued a "Letter of instruction" pertaining to the proper car stop tactics by PBBS-IU personnel.

Log Received Date: 01/14/2023 **Top Allegation:** USE OF FORCE - LEVEL 1 **Log Occ Date From:** 01/13/2023 23:30

Referrals: (1) :164-PATROL BORO BKLYN SOUTH

OG-OUTSIDE GUIDELINES	2022-12191	(067)	05/22/2022	07/13/2022	ZE-EXONERATED	Fail to Safeguard Dept Equipment - Body Worn Camera	Exonerated	2022/06/18	The I/S is finding the MOS exonerated. The BWC was lost during a violent encounter with a perpetrator. There was a large group surrounding the officers. The officers immediately noticed the missing equipment and searched the area. The BWC was no longer present on scene with the officers.
						Missing Department Equipment - Body Worn Camera	Exonerated	2022/06/18	The I/S is finding the MOS exonerated. The BWC was lost during a violent encounter with a perpetrator. There was a large group surrounding the officers. The officers immediately noticed the missing equipment and searched the area. The BWC was no longer present on scene with the officers.

Log Received Date: 05/21/2022 **Top Allegation:** MISSING DEPARTMENT EQUIPMENT - BODY WORN CAMERA **Log Occ Date From:** 05/21/2022 21:54 to 05/21/2022 21:54

Referrals: (1) :067-067 PRECINCT

CC-CIVILIAN COMPLAINT	2022-02013	(CRB) CC-2022-117	02/01/2022	02/02/2022	RM-INFORMATION AND INTELLIGENCE	Use of Force - Level 2	.
						Prisoner Incident - Injured Prior to NYPD Custody - MOS Involved	.
						On Duty Traffic Incident - Vehicle Pursuit - Other	.
						Force - Physical Force	.
						FADO Force - Physical Force	.

Log Received Date: 01/27/2022 **Top Allegation:** USE OF FORCE - LEVEL 2 **Log Occ Date From:** 01/24/2022 23:00

FI-FORCE INVESTIGATION	2022-01898	(164) FI-2022-51	01/27/2022	08/05/2022	ZP-PARTIALLY SUBSTANTIATED	Use of Force - Level 2	Info. and Intelligence	2022/07/28	During the course of this investigation, it was determined Police Officer Modesto utilized the minimum amount of force when attempting to handcuff a resisting perpetrator who fled from the police. It should be noted Officer Modesto was alone during this encounter and had to use hand strikes to gain control of the resisting perpetrator.
						Prisoner Incident - Injured Prior to NYPD Custody - MOS Involved	Info. and Intelligence	2022/07/28	During the course of this investigation, it was determined the perpetrators were involved in a vehicle collision while attempting to evade the police. Which resulted in injuries to Mr. [REDACTED]
						On Duty Traffic Incident - Vehicle Pursuit - Other	Unsubstantiated	2022/07/28	During the course of this investigation, it was determined there is insufficient evidence to support the officers engaged in a vehicle pursuit. During the course of formal interviews, the officers related they were never position behind the subject vehicle. In addition, Officer Modesto indicated while canvassing for the vehicle, he observed

								the subject vehicle 15-20 block ahead of him traveling at a high rate of speed. Lastly, the subject vehicle collided with a civilian vehicle only minutes after the officers attempted to stop them.
				Force - Physical Force	Exonerated	2022/07/28		During the course of this investigation, it was determined Police Officer Modesto utilized the minimum amount of force when attempting to handcuff a resisting perpetrator who fled from the police. It should be noted Officer Modesto was alone during this encounter and had to use hand strikes to gain control of the resisting perpetrator.
				FADO Force - Physical Force	Info. and Intelligence	2022/07/28		This allegation will be investigated by the CCRB
				Body Worn Camera - Fail to Activate Timely Manner	Substantiated	2022/07/28		After reviewing Police Officer Modesto's BWC, it was discovered he activated his camera mid pursuit. Late activation.
				Other Dept Rules/Procedures Violation -	Substantiated	2022/07/28		While attempting to handcuff a resisting perpetrator, Officer Modesto gave several verbal commands for him to stay down. However, at one point, Officer Modesto states, in essence, "Get down Nigger". This statement can be heard on his Body Worn Camera at the 1.53 mark.

Log Received Date: 01/26/2022 **Top Allegation:** USE OF FORCE - LEVEL 2 **Log Occ Date From:** 01/24/2022 23:00

Referrals: (1) :164-PATROL BORO BKLYN SOUTH

OG-OUTSIDE GUIDELINES	2021-17628	(067) OG-2021-9015	08/12/2021 09/30/2021	ZU-UNSUBSTANTIATED	Body Worn Camera - Fail to Activate Timely Manner	Unsubstantiated	2021/09/26	The I/S is closing this case as Unsubstantiated based on the UMOS interview and review of the BWC the I/S is unable to prove or disprove that the UMOS failed to activate their BWC in a timely manner because they were in an extraordinary situation, when they pursued a subject that appeared to be in possession of a firearm.
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Log Received Date: 08/10/2021 **Top Allegation:** BODY WORN CAMERA - FAIL TO ACTIVATE TIMELY MANNER **Log Occ Date From:** 05/25/2019 20:30 to 05/25/2019 22:00

Referrals: (1) :067-067 PRECINCT

M-MISCONDUCT	2021-03652	(164) M-2021-248	02/20/2021 05/21/2021	ZU-UNSUBSTANTIATED	Profiling - Race/Color/Ethnicity/National - Black	Unsubstantiated	2021/05/18	Pursuant to a formal investigation of IAB Log#21-3652, the above allegation has been deemed unsubstantiated.
					Disputed Search of a Vehicle - Enforcement Action Taken - Arrest/Summons	Exonerated	2021/05/18	Pursuant to a formal investigation of IAB Log#21-3652, the above allegation has been deemed exonerated. Police Officer Modesto observed the complainant smoking a lit marijuana cigarette and due to the presence of marijuana in the vehicle, the officers conducted a search of the vehicle and recovered additional marijuana.
					FADO Abuse of Authority - Search of a Vehicle - Enforcement Action Taken	Info. and Intelligence	2021/05/18	The above allegation is for Information only and will be investigated by CCRB.
					Disputed Stop of a Vehicle - Enforcement Action Taken - Arrest/Summons	Unsubstantiated	2021/05/18	Pursuant to a formal investigation of IAB Log#21-3652, the above allegation has been deemed unsubstantiated. Police Officer Modesto observed a violation and performed a lawful car stop to address the violation which the complainant is contesting.

Log Received Date: 02/17/2021 **Top Allegation:** PROFILING - RACE/COLOR/ETHNICITY/NATIONAL - BLACK **Log Occ Date From:** 02/16/2021 00:40

Referrals: (1) :164-PATROL BORO BKLYN SOUTH

OG-OUTSIDE GUIDELINES	2020-02446	(067) OG-2020-1274	01/31/2020 03/24/2020	ZU-UNSUBSTANTIATED	Disputed Stop of a Person - Enforcement Action Taken - Arrest/Summons	Unsubstantiated	2020/03/12	A thorough investigation into the incident revealed that there is insufficient evidence to prove or disprove the above listed allegation. After speaking with the subject, and reviewing records, The I/S determined that PO
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Modesto followed all Department protocol in their response and subsequent handling of the Complainant's incident. The I/S is closing the allegation of, ☐ VIOLATION ☐ DISPUTED STOP OF A PERSON, ☐ with a final disposition of: UNSUBSTANTIATED. No further action is being taken at this time.

Log Received Date: 01/23/2020 **Top Allegation:** DISPUTED STOP OF A PERSON - ENFORCEMENT ACTION TAKEN - ARREST/SUMMONS **Log Occ Date From:** 01/23/2020 00:00

Referrals: (1) :067-067 PRECINCT

SI-SELF INITIATED INVESTIGATION	2020-00052 (G32) SI-2020-52	02/06/2020 05/06/2020	IN-I+I - NEGATIVE	Self Initiated Investigation - Info, and Intelligence	2020/04/26	During this review, it was discovered that the Arresting Officer, PO Modesto did not continuously record the incident in its entirety, as mandated in PG 212-123. There is a 3:03 laps from the second video to the third video, and a 22:41 laps from the third video to the forth video. It was also discovered that the location of arrest is listed as 2820 Snyder Street, inside the 67 Precinct, however, it should have been inside 9 Blake Street, confines of the 73 Precinct.
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Log Received Date: 02/06/2020 **Top Allegation:** SELF INITIATED INVESTIGATION - **Log Occ Date From:**

CC-CIVILIAN COMPLAINT	2019-20868 (CRB) CC-2019-1401	06/03/2019 06/05/2019	RM-INFORMATION AND INTELLIGENCE	Use of Force - Level 2	.
				FADO Force - Physical Force	.
				Force - Physical Force	.
				Prisoner Incident - Injured in NYPD Custody - MOS Involved	.

Log Received Date: 05/29/2019 **Top Allegation:** USE OF FORCE - LEVEL 2 **Log Occ Date From:** 05/25/2019 20:38

F-FILE	2019-20409 (REC) F-2019-3551	05/29/2019 05/29/2019	C5-CLOSED AS PENDING	Use of Force - Level 2	.
				FADO Force - Physical Force	.
				Force - Physical Force	.
				Prisoner Incident - Injured in NYPD Custody - MOS Involved	.

Log Received Date: 05/26/2019 **Top Allegation:** USE OF FORCE - LEVEL 2 **Log Occ Date From:** 05/25/2019 20:38

OG-OUTSIDE GUIDELINES	2018-18345 (067) OG-2018-9279	05/14/2018 06/19/2018	ZS-SUBSTANTIATED	Memobook Incomplete/Improper -	Substantiated	2018/06/13	The I/O finds the allegation of incomplete memobook to be Substantiated.
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Log Received Date: 05/11/2018 **Top Allegation:** MEMOBOOK INCOMPLETE/IMPROPER - **Log Occ Date From:** 09/19/2017 19:45 to 09/19/2017 19:45

Referrals: (1) :067-067 PRECINCT

FI-FORCE INVESTIGATION	2018-12817 (164) FI-2018-824	04/09/2018 06/25/2018	ZU-UNSUBSTANTIATED	FADO Force - Physical Force	Info, and Intelligence	2018/06/22	This allegation will be investigated by the Civilian Complaint Review Board
				Disputed Stop of a Person - No Enforcement Action Taken - Questioned and Frisked	Exonerated	2018/06/22	The officers observed two (2) small groups of kids acting as if they were going to fight one another. Upon

approaching the group that included Mr. [REDACTED] Mr. [REDACTED] fled for an unknown reason.

FADO Force - Struck Against object	Info. and Intelligence	2018/06/22	This allegation will be investigated by the Civilian Complaint Review Board.
Use of Force - Level 2	Unsubstantiated	2018/06/22	During the course of this investigation, it was determined there is insufficient evidence to support the officer utilized any force during this encounter.
Fail to Prepare Report - TRI Report	Unsubstantiated	2018/06/22	During the course of this investigation, it was determined there is insufficient evidence to support the officer utilized any force during this encounter.

Log Received Date: 04/03/2018 **Top Allegation:** USE OF FORCE - LEVEL 2 **Log Occ Date From:** 04/03/2018 18:00

Referrals: (1) :164-PATROL BORO BKLYN SOUTH

FI-FORCE INVESTIGATION	2017-39843 (REC) FL-2017-88	10/15/2017 10/17/2017	C5-CLOSED AS PENDING	Prisoner Incident - Injured Prior to NYPD Custody - MOS Involved	.
				Use of Force - Level 4	.
				Firearms Discharge -	.

Log Received Date: 10/12/2017 **Top Allegation:** USE OF FORCE - LEVEL 4 **Log Occ Date From:** 10/12/2017 22:10

Referrals: (1) NYPD:611-FORCE INVESTIGATION DIVISION

CC-CIVILIAN COMPLAINT	2017-36754 (CRB) CC-2017-2234	09/25/2017 09/26/2017	RM-INFORMATION AND INTELLIGENCE	Aided Non MOS Injured - in NYPD Custody - Police involved	.
				Use of Force - Level 2	.
				FADO Force - Physical Force	.

Log Received Date: 09/22/2017 **Top Allegation:** USE OF FORCE - LEVEL 2 **Log Occ Date From:** 09/19/2017 19:53

M-MISCONDUCT	2017-36414 (REC) M-2017-3351	09/22/2017 06/24/2019	RM-INFORMATION AND INTELLIGENCE	Aided Non MOS Injured - in NYPD Custody - Police involved	Info. and Intelligence	2017/10/03
				Use of Force - Level 2	Info. and Intelligence	2017/10/03
				FADO Force - Physical Force	Info. and Intelligence	2017/10/03
				Additional Information Prior Log -	Info. and Intelligence	2017/10/03

Log Received Date: 09/19/2017 **Top Allegation:** USE OF FORCE - LEVEL 2 **Log Occ Date From:** 09/19/2017 19:32

C-CORRUPTION	2017-23841 (G54) C-2017-325	06/27/2017 02/15/2019	9M-UNSUBSTANTIATED / MINOR PROCEDURAL VIOLATION	Force - Physical Force	Unsubstantiated	2019/02/10	On June 21, 2017, Mr. [REDACTED] reported to the Command Center that the police entered his home on June 20, 2018 at approximately 1600 hours with a warrant to search for his sister's fiancé, [REDACTED] who was subsequently arrested [REDACTED] Mr. [REDACTED] stated that the officers refused to present him with a warrant and that he was handcuffed by one of the officers which caused his arm and wrist to break in two places. Witness, Ms. [REDACTED] and Ms. [REDACTED] were interviewed by Group 54 Investigators on June 22, 2017 in regards to the incident. Ms. [REDACTED] and Ms. [REDACTED] stated that Mr. [REDACTED] arm was injured in the past and that he needed a surgery done on it due to an infection on his arm. Witnesses, Ms. [REDACTED] Ms. [REDACTED]
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Force - Handcuffs used to
cause pain

Unsubstantiated 2019/02/10

Ms. [REDACTED] and Mr. [REDACTED] all stated that they did not observe the officers punch, strike, kick or knee Mr. [REDACTED] before and after he was placed in cuffs. Ms. [REDACTED] and Mr. [REDACTED] stated that they observed the male Hispanic officer (Det. Vargas) place a handcuff on Mr. [REDACTED] right hand and was pulling down on the handcuff as he attempted to place him in cuffs. Det. Richards stated that he did not take part in placing Mr. [REDACTED] in cuffs, that he did not utilize any force on Mr. [REDACTED] and that he did not observe any force being used on Mr. [REDACTED] as he was not present during the time Mr. [REDACTED] was placed in cuffs. Det. Vargas stated that with the assistance of other officers who were present, he did place Mr. [REDACTED] in cuffs because Mr. [REDACTED] was impeding his investigation by refusing to move out of the way and by coming at him numerous times even after clear commands were given to him to step back. Witness Officer, PO Pierre stated that Mr. [REDACTED] was yelling, aggressive and refused to move out of the way. PO Pierre stated that Det. Vargas and PO Modesto both placed Mr. [REDACTED] in cuffs for their safety. Witness Officer, PO Modesto stated that he assisted Det. Vargas in placing Mr. [REDACTED] in cuffs. Det. Vargas, PO Pierre, and PO Modesto stated that they did not punch, strike, or kick Mr. [REDACTED] and that they did not observe anyone do the same. The officers stated that they do not know how Mr. [REDACTED] sustained his injuries that they did not observe any injuries on Mr. [REDACTED] and that Mr. [REDACTED] never complained to them of any pain or injuries. One cell phone video captures the incident where Mr. [REDACTED] is heard cursing, yelling, screaming, asking for the warrant and is observed getting very close to Det. Vargas. The video does not capture Mr. [REDACTED] being placed in cuffs. Medical Records show that Mr. [REDACTED] was treated by Dr. [REDACTED] at Kingsbrook Jewish Medical Center as a walk in on June 21, 2017 and was diagnosed with a fracture on his right wrist. Medical records show that Mr. [REDACTED] did have surgery for an infection to his right hand in the past on January of 2017. On August 30, 2017, in an interview with Group 54 investigators, Mr. [REDACTED] stated that he had a prior gunshot injury to his right wrist. The Allegation of FADO Force-Physical Force was investigated by CCRB under CCRB Case # 201705224. CCRB's finding for this allegation is Substantiated. CCRB's rationale for this finding is that Det. Vargas wrongfully used force. In that, while [REDACTED] right wrist was handcuffed, he forcibly pulled on the other side of the handcuffs without police necessity. Charges & Specifications were preferred by CCRB. CCRB Specification # 3 addresses this allegation. However, this investigation disclosed that there is insufficient evidence to prove or disprove that the force utilized by the subject officers to handcuff Mr. [REDACTED] was unnecessary or excessive. As such the allegation of Force -Physical Force will be closed as Unsubstantiated. Mr. [REDACTED] stated he was handcuffed by one of the officers which caused his arm and wrist to break in two places. Ms. [REDACTED] and Mr. [REDACTED] both stated that they observed the Hispanic officer (Det. Vargas) place a handcuff on Mr. [REDACTED] right hand and was pulling down on the handcuff as he attempted to

Fail to Prepare Report - TRI Report	Unsubstantiated	2019/02/10	place him in cuffs. Det. Vargas and PO Modesto stated that they placed Mr. [REDACTED] in cuffs, however they denied causing any injuries or pain to Mr. [REDACTED] and that Mr. [REDACTED] did not complain to them of any pain or injuries to his hand. There is no video which captured Mr. [REDACTED] being placed in cuffs. This investigation was unable to prove or disprove if the officers used handcuffs to cause pain. As such, the allegation of Force- Handcuffs used to cause pain will be closed as Unsubstantiated. Mr. [REDACTED] stated that he was handcuffed by one of the officers which caused his arm and wrist to break in two places. Mr. [REDACTED] stated that the officers tussled with him while placing him in cuffs. PO Modesto stated that he did not punch, strike, kick, knee or use any force to place Mr. [REDACTED] in cuffs. PO Modesto who stated that he only assisted Det. Vargas in placing Mr. [REDACTED] in cuffs and that he did not witness Det. Vargas utilize any force on Mr. [REDACTED]. Det. Modesto stated that Mr. [REDACTED] did not complain of any pain or injuries and did not request medical attention. PO Modesto did not fill out a TRI. IAB Group 54 prepared TRI number 2019-67-000006 in connection with this incident. This investigation was unable to prove or disprove if the officers used force to place Mr. [REDACTED] in handcuffs or caused his injury, both of which would have required a TRI Report. As such the allegation of Fail to Prepare Report-TRI Report will be closed as Unsubstantiated.
Use of Force - Level 3	Info. and Intelligence	2019/02/10	This investigation disclosed that on June 20, 2017, based on the use of force investigative responsibilities and reporting guide, this matter was investigated by the Internal Affairs Bureau as a Use of Force-Level 3 due to the injuries sustained (fracture to the right wrist) in connection with this incident. TRI number 2019-67-000006 was prepared in connection with this incident. The allegation of Use of Force-Level 3 will be closed as Information and Intelligence.
FADO Force - Physical Force	Info. and Intelligence	2019/02/10	Referred to CCRB for investigation under CCRB case # 201705224. Therefore, the allegation of FADO Force-Physical Force will be closed as Information & Intelligence.
FADO Force - Handcuffs used to cause pain	Info. and Intelligence	2019/02/10	Referred to CCRB for investigation under CCRB case # 201705224. Therefore, the allegation of FADO Force-Physical Force will be closed as Information & Intelligence.
Aided Non MOS Injured - in NYPD Custody - Police involved	Info. and Intelligence	2019/02/10	On June 21, 2017, Mr. [REDACTED] reported to the Command Center that the police entered his home on June 20, 2018 at approximately 1600 hours with a warrant to search for his sister's fiancé, [REDACTED] who was subsequently arrested. [REDACTED] Mr. [REDACTED] stated that the officers refused to present him with a warrant and that he was handcuffed by one of the officers which caused his arm and wrist to break in two places. Mr. [REDACTED] stated that he was not arrested and was later released. Medical Records show that Mr. [REDACTED] was diagnosed with a fracture on his right wrist. As such the allegation of Aided Non MOS Injured-in NYPD Custody-Police Involved will be closed as Information and Intelligence.

CC-CIVILIAN COMPLAINT [2017-23732](#) [\(CRB\)](#) [CC-2017-1468](#) 06/25/2017 06/27/2017 RM-INFORMATION AND INTELLIGENCE Disputed Arrest -

FADO Force - Physical Force
Other Dept Rules/Procedures Violation -

Log Received Date: 06/21/2017 **Top Allegation:** FADO FORCE - PHYSICAL FORCE **Log Occ Date From:** 06/18/2017 19:00

OG-OUTSIDE GUIDELINES [2017-23334](#) [\(REC\)](#) [OG-2017-11932](#) 06/21/2017 06/21/2017 C5-CLOSED AS PENDING Disputed Arrest -

FADO Force - Physical Force
Other Dept Rules/Procedures Violation -

Log Received Date: 06/19/2017 **Top Allegation:** FADO FORCE - PHYSICAL FORCE **Log Occ Date From:** 06/18/2017 19:00 to 06/18/2017 19:00

Referrals: (1) NYPD:530-CHIEF OF DEPT INV REVIEW SECT (2) NYPD:132-PSB INVEST AND EVAL SECT (3) NYPD:067-067 PRECINCT (4) EXTERNAL:IRS

OG-OUTSIDE GUIDELINES [2016-20550](#) [\(REC\)](#) [OG-2016-11743](#) 06/13/2016 06/13/2016 C5-CLOSED AS PENDING Disputed Summons - Traffic

Log Received Date: 06/08/2016 **Top Allegation:** DISPUTED SUMMONS - TRAFFIC **Log Occ Date From:** 06/08/2016 17:35 to 06/08/2016 17:48

Referrals: (1) NYPD:530-CHIEF OF DEPT INV REVIEW SECT (2) NYPD:132-PSB INVEST AND EVAL SECT (3) NYPD:067-067 PRECINCT (4) EXTERNAL:IRS

OG-OUTSIDE GUIDELINES [2015-38985](#) [\(REC\)](#) [OG-2015-22481](#) 12/18/2015 12/18/2015 C5-CLOSED AS PENDING Domestic Incident - Verbal Dispute - No Order of Protection

Log Received Date: 12/14/2015 **Top Allegation:** DOMESTIC INCIDENT - VERBAL DISPUTE - NO ORDER OF PROTECTION **Log Occ Date From:** 11/15/2015 21:30 to 11/15/2015 21:30

Referrals: (1) NYPD:530-CHIEF OF DEPT INV REVIEW SECT (2) NYPD:521-FAMILY ASSISTANCE SECTION (3) NYPD:132-PSB INVEST AND EVAL SECT (4) NYPD:164-PATROL BORO BKLYN SOUTH (5) EXTERNAL:IRS

OG-OUTSIDE GUIDELINES [2015-38913](#) [\(REC\)](#) [OG-2015-22385](#) 12/17/2015 12/17/2015 C5-CLOSED AS PENDING Fail to Take Police Action - On Other Incident

Fail to Take/Make Report -

Log Received Date: 12/13/2015 **Top Allegation:** FAIL TO TAKE/MAKE REPORT - **Log Occ Date From:** 12/13/2015 20:30 to 12/13/2015 20:30

Referrals: (1) NYPD:530-CHIEF OF DEPT INV REVIEW SECT (2) NYPD:132-PSB INVEST AND EVAL SECT (3) NYPD:067-067 PRECINCT (4) EXTERNAL:IRS

M-MISCONDUCT [2015-36225](#) [\(REC\)](#) [M-2015-2478](#) 11/25/2015 10/20/2016 9-UNSUBSTANTIATED Fail to Take/Make Report -

Unsubstantiated 2016/09/23 SGT KEAG, PBBS I/U, REQUESTS TO ADD THE ABOVE LISTED SUBJECT AND ALLEGATION. REASON FOR CHANGE: "PREVIOUSLY UNID SUBJECTS NOW IDENTIFIED AS ABOVE OFFICERS. REQUEST TO REMOVE UNID SUBJECT AND ADD ABOVE SUBJECTS." WORKSHEET ATTACHED. CPI UPDATED.
Unsubstantiated 2016/09/23 SGT KEAG, PBBS I/U, REQUESTS TO ADD THE ABOVE LISTED SUBJECT AND ALLEGATION. REASON FOR CHANGE: "PREVIOUSLY UNID SUBJECTS NOW IDENTIFIED AS ABOVE OFFICERS. REQUEST TO REMOVE UNID SUBJECT AND ADD ABOVE SUBJECTS." WORKSHEET ATTACHED. CPI UPDATED.

Log Received Date: 11/22/2015 **Top Allegation:** PROFILING - RACE/COLOR/ETHNICITY/NATIONAL **Log Occ Date From:** 11/21/2015 18:51 to 11/21/2015 18:51

OG-OUTSIDE GUIDELINES	2015-25538 (REC) OG-2015-14550	09/01/2015 12/28/2015	C5-CLOSED AS PENDING	Additional Information Prior Log -	.	
				Fail to Take/Make Report -	.	
				FADO - Discourtesy	.	
				Investigate	.	
				Incomplete/Improper -	.	
Log Received Date: 08/31/2015 Top Allegation: FAIL TO TAKE/MAKE REPORT - Log Occ Date From: 08/31/2015 15:00						
Referrals: (1) NYPD:530-CHIEF OF DEPT INV REVIEW SECT (2) NYPD:132-PSB INVEST AND EVAL SECT (3) NYPD:067-067 PRECINCT (4) EXTERNAL:IRS						
OG-OUTSIDE GUIDELINES	2015-21749 (REC) OG-2015-12379	08/05/2015 08/20/2015	C5-CLOSED AS PENDING	Disputed Arrest -	.	AS PER THE ASSESSMENTS UNIT, THE ALLEGATION OF DISPUTED ARREST IS BEING ADDED TO P.O. MODESTRO, TAX# 950897. REASON FOR CHANGE, "ASSESSED BEFORE ALLEGATION WAS ADDED - CORRECTION IS AS PER INSP. LYONS REQUEST." WORKSHEET ATTACHED.
Log Received Date: 07/30/2015 Top Allegation: FADO - UNNECESSARY FORCE Log Occ Date From:						
Referrals: (1) NYPD:530-CHIEF OF DEPT INV REVIEW SECT (2) NYPD:132-PSB INVEST AND EVAL SECT (3) NYPD:067-067 PRECINCT (4) EXTERNAL:IRS						
OG-OUTSIDE GUIDELINES	2015-14891 (REC) OG-2015-8240	06/03/2015 06/03/2015	C5-CLOSED AS PENDING	Fail to Respond in a Timely Manner - to 911 Job	.	
				Fail to Take/Make Report -	.	
Log Received Date: 05/30/2015 Top Allegation: FAIL TO TAKE/MAKE REPORT - Log Occ Date From: 05/30/2015 15:00 to 05/30/2015 16:55						
Referrals: (1) NYPD:530-CHIEF OF DEPT INV REVIEW SECT (2) NYPD:132-PSB INVEST AND EVAL SECT (3) NYPD:067-067 PRECINCT (4) EXTERNAL:IRS						
C-CORRUPTION	2014-29454 (G32) C-2014-500	09/04/2014 02/15/2016	9-UNSUBSTANTIATED	Fail to Notify - IAB	Unsubstantiated 2015/12/04	The investigation was unable to prove or disprove PO Modesto was informed by Mr. [REDACTED] of the currency missing from his apartment after this arrest. Therefore, this allegation will be finalized as Unsubstantiated.
Log Received Date: 08/30/2014 Top Allegation: MISSING PROPERTY - PREMISE Log Occ Date From:						
OG-OUTSIDE GUIDELINES	2014-21613 (REC) OG-2014-12516	06/24/2014 06/24/2014	C5-CLOSED AS PENDING	PD Item, Lost - Summons/Unissued	.	
				Fail to Safeguard Dept Property	.	
Log Received Date: 06/21/2014 Top Allegation: PD ITEM, LOST - SUMMONS/UNISSUED Log Occ Date From: 06/02/2014 19:00 to 06/02/2014 19:00						
Referrals: (1) NYPD:132-PSB INVEST AND EVAL SECT (2) NYPD:530-CHIEF OF DEPT INV REVIEW SECT (3) NYPD:164-PATROL BORO BKLYN SOUTH						
OG-OUTSIDE GUIDELINES	2013-38973 (REC) OG-2013-21563	09/12/2013 12/18/2013	C5-CLOSED AS PENDING	FADO - Discourtesy	.	
Log Received Date: 09/10/2013 Top Allegation: FADO - DISCOURTESY Log Occ Date From:						
Referrals: (1) NYPD:530-CHIEF OF DEPT INV REVIEW SECT						
OG-OUTSIDE GUIDELINES	2013-35295 (REC) OG-	08/20/2013 01/09/2014	C5-CLOSED AS PENDING	PD Item, Lost - Train Pass-MetroCard	.	

[2013-19549](#)

Fail to Safeguard Dept
Property

Log Received Date: 08/16/2013 **Top Allegation:** PD ITEM, LOST - TRAIN PASS-METROCARD **Log Occ Date From:** 08/15/2013 00:00

Referrals: (1) NYPD:530-CHIEF OF DEPT INV REVIEW SECT (2) EXTERNAL:CO TRANSIT BUR

OG-OUTSIDE [2013- \(REC\)](#) 06/14/2013 10/16/2013 C5-CLOSED AS Disputed Arrest
GUIDELINES [25276 OG-](#) PENDING
[2013-](#)
[14005](#)

Log Received Date: 06/12/2013 **Top Allegation:** DISPUTED ARREST **Log Occ Date From:** 06/12/2013 00:15

Referrals: (1) NYPD:530-CHIEF OF DEPT INV REVIEW SECT
